

Salerno Ranch Homeowners Association

Design Review Guidelines

Dear Homeowner,

The Board of Directors of your Association has prepared guidelines to serve as a supplement of our Covenants, Conditions and Restrictions (CC&R's) in order that all residents are informed of the rules and regulations pertaining to our community. The Association has the right to enforce these Association guidelines as provided in Article 4 of the CC&R's.

The purpose of these guidelines is to ensure a well-maintained community.

Our Management Company is PMG Services and our Property Manager is Linda Westbrook. If you have any questions or concerns, please call the Property Manager at 480-829-7400 X 205. The Property Manager visits the community biweekly. Deviations from these guidelines may result in notice and fines from the Property Manager to the homeowner and residents.

The Homeowners Association desires to promote a community spirit. These guidelines, if followed will benefit homeowners. Enjoy your community and take time to meet your neighbors.

Homeowners are encouraged to attend monthly Board meetings.

**PUBLIC SAFETY ISSUES SHOULD BE DIRECTED TO THE NON-EMERGENCY
POLICE NUMBER 480-644-2211.**

If necessary, call 911.

We hope this information will be of benefit to all homeowners. A minimal charge of coping and mailing cost of \$5.00 will be assessed for replacement of these Homeowner's Guidelines.

Thank you,

The Board of Directors

Effective November 5, 2008

LANDSCAPING

1. **LANDSCAPING:** Front yard landscaping may consist of all or part of the following: trees, plants, gravel, granite, and river rock for washes, grass brick or edging outlining design areas in the yard and accent lighting as long as it presents an aesthetic appeal in the appearance of the landscaping. An Architectural Change Request (ACR) must be submitted for prior written approval by the Design Review Committee (DRC) before commencing work. (CC&R's Article 4, Section 4.6)

2. **LANDSCAPING MAINTENANCE:** Each Homeowner shall keep neatly trimmed, properly cultivated and free from trash, weeds and other unsightly material all shrubs, trees, hedges, grass and plantings of every kind located on it's lot (including set back areas and Common Areas that apply above). Grass cannot be higher than six (6") If any of the above items are not properly maintained, the Homeowner will be in violation and a fine may be imposed, if not corrected within the timeframe stated in the non-compliance letter. (CC&R's Article 4, Section 4.9)

3. **OVERHEAD ENCROACHMENTS:** No tree, shrub or planting of any kind on any lot shall be allowed to materially overhang or otherwise encroach upon any sidewalk, street, pedestrian way, block fence, or other area from ground level to a height of eight (8') feet without prior written approval of the Design Review Committee. If the Homeowner is not in compliance of the above paragraph, the Homeowner will be in violation and a fine may be imposed, if not corrected within the time frame stated in the non-compliance letter. (CC&R's, Article 4, Section 4.29)

4. **VEGETATION ON HOMEOWNER'S PROPERTY:** All dead or dying trees and bushes on the property must be removed and disposed of properly. If a tree in the front yard dies, it needs to be replaced with another tree, preferably with the same type of tree. If just replacing a tree, plant or shrub in the same location, it is not necessary to submit an ACR. If changing the Landscape Design, then another Architectural Change Request (ACR) must be submitted for prior written approval by the Design Review Committee before commencing work. (CC&R's, Article 4, Section 4.9)

5. **COMMON AREAS IN FRONT OF THE PROPERTY: (BUILDER)** If the trees or plants in the common area were planted by the Builder, contact the management company to replace the trees or plants. The management company is responsible for the trimming and maintenance of the vegetation. Common areas are the responsibility of the HOA **unless duly noted in writing** that the Homeowner has taken on that responsibility by supplying the water, plants and or trees to the area at their expense. (CC&R's, Article 4, section 4.9 and Article 10, section 10.1)

Satellite Dishes must not be placed on the roof of your home. An ACR must be submitted by the homeowner for prior written approval by the Design Review Committee before installing the satellite dish. (CC&R's Article 4, section 4.22, A.R.S. 2006)

13. **BACK AND FRONT YARD LIGHTING:** Flood lights and motion detection lights should be placed where they are not offending any adjacent neighbors. Lighting should be in accordance with need. Low voltage lighting is recommended for most areas in front and back yards. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, section 4.6)

14. **WIRING:** Outside wiring of any kind should be inconspicuous, not to be seen by any adjacent neighbors. It should be neatly arranged and hidden with piping to protect it and painted to match the exterior of the home. (CC&R's Article 4, section 4.15)

15: **TRASH AND ANIMAL WASTE:** Should always be picked up both in the front and back yards. It becomes a health hazard if left unattended for any length of time. You will be notified if it gets too bad and in worst cases, a fine may be imposed. (CC&R's Article 4, section 4.8, Mesa City Code)

16. **PLAY POOLS:** If play pools are used in the front yard, they must be emptied and removed to the back yard behind a six (6') foot fence each evening so that there is no standing water to attract mosquitoes.) (CC&R's Article 4, section 4.8, DRC)

17. **FRONT YARD FURNITURE:** Needs to be kept in good condition and maintained, otherwise removed from site. If it becomes unsightly, you will be notified to improve the condition or replace or remove the item from site. (CC&R's Article 4, section 4.6)

ARCHITECTURAL CHANGES

1. **CMU BLOCK FENCE:** Homeowner's CMU block fences facing the street may be finished with stucco and with matching texture of the home and painted to match the base color of the home. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4 section 4.27)

2. **BACK YARD AND SIDE FENCE LINES:** if adding additional row or rows of CMU block fence, it must be the same texture and same color in paint as the existing fence. All fence additions must have either rebar or concrete reinforcement, otherwise, it may be torn down at the Homeowner's expense. An ACR must be submitted by Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, sections 4.1,4.27)

Homeowner for prior written approval by the Design Review Committee before commencing work. (Mesa City Code)

8. **DRIVEWAYS TO THE RV GATE:** Vehicle parking is permitted in front of a closed RV gate. Only, if the driveway material consists of either concrete, three (3") inches of crushed gravel, granite or two (2) rows of pavers between the width of 2' to 3' wide or at least the width of the vehicle tires. If the material is gravel, granite or rock, it has to be surrounded by a permanent border according to compliance with Mesa City Codes. Permanent border may consist of curbing, pavers, stones, or concrete, etc. The gravel, granite or rock must be raked frequently for tire tracks. If adding pavers to the RV driveway, an ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee. (Board approved, 2006 Mesa City Code)

9. **SIDEWALKS LEADING TO THE FRONT DOOR, GATES OR DRIVEWAYS:** May be faux painted with designs such as brick, rock or flagstone in a neutral or earth tone color to blend with the base color of the home. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, sections 4.1, 4.6)

10. **EXTERIOR PAINT COLORS FOR HOMES:** Homeowner must check with the Design Review Committee for Exterior Color Codes for Salerno Ranch Subdivision before submitting an ACR prior to choosing a color to repaint the exterior color of their home. (Board Approved 2006)

11. **EXTERIOR HOUSING MAINTENANCE:** The exterior housing maintenance ordinance or "housing code" requires that the homes and other exterior structures be maintained in a structurally sound condition and not show deterioration, disrepair or blight. If paint is required, then an ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before choosing a color to repaint the exterior color of the home. (CC&R's Article 4, section 4.6, Mesa City Code)

12. **FRONT SCREEN DOORS:** Screen doors must be painted either the color of the door, base or trim color of the home. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before installing the front screen door. (Board Approved 2006)

13. **WINDOW SCREEN FRAMES:** Window screen frames should be the same color as the window frames. (CC&R's Article 4, section 4.25)

14. **RAIN GUTTERS:** Must be painted the same color as the eave or base color of the home or roof. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (DRC)

15. **DOWN SPOUTS:** Must be placed so that the direction for the run off isn't running into the neighbor's property. (DRC)

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3. **OVERHEAD ENCROACHMENTS:** No tree, shrub or planting of any kind on any lot shall be allowed to materially overhang or otherwise encroach upon any sidewalk, street, pedestrian way, block fence, or other area from ground level to a height of eight (8') feet without prior written approval of the Design Review Committee. If the Homeowner is not in compliance of the above paragraph, the Homeowner will be in violation and a fine may be imposed, if not corrected within the time frame stated in the non-compliance letter. (CC&R's, Article 4, Section 4.29)
4. **VEGETATION ON HOMEOWNER'S PROPERTY:** All dead or dying trees and bushes on the property must be removed and disposed of properly. If a tree in the front yard dies, it needs to be replaced with another tree, preferably with the same type of tree. If just replacing a tree, plant or shrub in the same location, it is not necessary to submit an ACR. If changing the Landscape Design, then another Architectural Change Request (ACR) must be submitted for prior written approval by the Design Review Committee before commencing work. (CC&R's, Article 4, Section 4.9)
5. **COMMON AREAS IN FRONT OF THE PROPERTY: (BUILDER)** If the trees or plants in the common area were planted by the Builder, contact the management company to replace the trees or plants. The management company is responsible for the trimming and maintenance of the vegetation. Common areas are the responsibility of the HOA **unless duly noted in writing** that the Homeowner has taken on that responsibility by supplying the water, plants and or trees to the area at their expense. (CC&R's, Article 4, section 4.9 and Article 10, section 10.1)

6. **COMMON AREAS IN FRONT OF THE PROPERTY: (HOMEOWNER)** If the trees or plants in the Common Area were planted by the Homeowner and the tree or plant dies, the Homeowner is responsible for the removal and the planting of another tree or plant of the same category. An Architectural Change Request (ACR) form must be submitted to the Design Review Committee for prior written approval. The Homeowner will be responsible for having the area Blue Staked before removal and replanting of another tree or plant prior to commencing work. The Homeowner is responsible for the trimming and maintenance of the vegetation in the Common Area. (CC&R's Article 4, section 4.9)

7. **YARD ART IN THE FRONT YARD:** Yard Art of any kind, such as statues, fountains, ceramic animals, windmills, may be acceptable. An ACR must be submitted to the Design Review Committee for prior written approval before adding the yard art to the front yard. (CC&R's Article 4, sections 4.1, 4.6)

8. **FLAG POLES:** Only one flag pole is allowed to be displayed in the front yard grounds. It can not be any higher than twenty (20) feet. If displaying more than one flag, they must be displayed on one flag pole. If the flag or flags are displayed during the evening hours, the flag must be illuminated. If you are displaying the United States flag and one or more other flags, the United States flag must be at the top of the flag pole according to the United States flag Codes. The flag or flags must also meet all standards of the United States flag codes for keeping the flag or flags in good condition and proper care of the flag or flags. A new statute (SB1055) which expands the language of A.R.S. 33-1261 and 33-1808 by allowing owners to display not only the United States flag, but certain military flags, the Arizona State flag and Arizona Indian Nation flags which was passed and signed by the Governor on April 10, 2006. (Statute 2006 SB 1055)

9. **FLAG DISPLAYED IN FRONT WINDOW:** A small flag 2'x3' may be displayed in a front window of the home. A larger flag can not be displayed or used as window covering for the front window. Only one front window in the home may be used to display a flag. (Statute 2006 SB 1055, Board Approved 2006)

10. **LAMP POLES FOR ACCENT LIGHTING:** A lamp pole may be installed in the front yard or along walkway to the front door. It must be a low voltage lighting fixture and no higher than eight (8') feet and painted to match the color of the home or a neutral color. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, section 4.6)

11. **ANTENNAS:** High voltage antennas must be city approved and installed in a place that is least visible to your adjacent neighbors. If possible the color should be neutral or same color as the home and nothing should be attached to draw attention to it. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before installing the antenna. (CC&R's Article 4, section 4.22, A.R.S. 2006)

12. **SATELLITE DISH:** Satellite Dishes should be facing South on the back fence wall below six (6') feet or on a 2'x4' cemented pot in your backyard pointed in a Southern direction.

Satellite Dishes must not be placed on the roof of your home. An ACR must be submitted by the homeowner for prior written approval by the Design Review Committee before installing the satellite dish. (CC&R's Article 4, section 4.22, A.R.S. 2006)

13. **BACK AND FRONT YARD LIGHTING:** Flood lights and motion detection lights should be placed where they are not offending any adjacent neighbors. Lighting should be in accordance with need. Low voltage lighting is recommended for most areas in front and back yards. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, section 4.6)

14. **WIRING:** Outside wiring of any kind should be inconspicuous, not to be seen by any adjacent neighbors. It should be neatly arranged and hidden with piping to protect it and painted to match the exterior of the home. (CC&R's Article 4, section 4.15)

15. **TRASH AND ANIMAL WASTE:** Should always be picked up both in the front and back yards. It becomes a health hazard if left unattended for any length of time. You will be notified if it gets too bad and in worst cases, a fine may be imposed. (CC&R's Article 4, section 4.8, Mesa City Code)

16. **PLAY POOLS:** If play pools are used in the front yard, they must be emptied and removed to the back yard behind a six (6') foot fence each evening so that there is no standing water to attract mosquitoes.) (CC&R's Article 4, section 4.8, DRC)

17. **FRONT YARD FURNITURE:** Needs to be kept in good condition and maintained, otherwise removed from site. If it becomes unsightly, you will be notified to improve the condition or replace or remove the item from site. (CC&R's Article 4, section 4.6)

ARCHITECTURAL CHANGES

1. **CMU BLOCK FENCE:** Homeowner's CMU block fences facing the street may be finished with stucco and with matching texture of the home and painted to match the base color of the home. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4 section 4.27)

2. **BACK YARD AND SIDE FENCE LINES:** if adding additional row or rows of CMU block fence, it must be the same texture and same color in paint as the existing fence. All fence additions must have either rebar or concrete reinforcement, otherwise, it may be torn down at the Homeowner's expense. An ACR must be submitted by Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, sections 4.1,4.27)

3. CMU FENCES THAT FACE THE COMMON AREAS: If the Homeowner wants to extend the height of their block fence that faces the Common Area wall, the Homeowner will need to contact all the neighbors that live in the same block along the Common Area wall on the same side of the street for their approval to the extension of the wall. The neighbors that live in the same block where the Homeowner lives, must

ALSO AGREE to extend their block fence along the Common Area to the same height, texture and color as the existing block fence. So that the entire block fence along that entire block has the same uniform appearance. The additional row or rows must be completed by the SAME Licensed Contractor. If all the neighbors agree to the SAME height and SAME Licensed Contractor, then each neighbor in the same block must submit an Architectural Change Request (ACR) to the Design Review Committee for prior written approval of the additional row or rows of block before commencing work. Once the Homeowners receive a written approval by the Design Review Committee for the additional row or rows of block fence, then work can commence. However, by adding a row or rows of block, the Homeowners will accept liability for any repairs or maintenance to the entire Common Area fence along their property line. The addition of the row or rows of block to the Common Area fence dissolve the HOA from any responsibility or liability for the block fence in the future. (Board Approved 2006)

4. WATER FOUNTAINS: Water fountains can be the height of up to seven (7') feet and must be in compliance with Mesa City Codes. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before installing the fountain. The color should be neutral in color or close to the color of the home. Only one (1) fountain in the front yard per lot. (Mesa City Code)

5. PONY WALLS: Pony walls may not exceed more than four (4) feet in height near the entrance of the front door/patio/court yards. The pony walls must be stucco finished with the same texture of the home and painted the same color as the base color of the home. The pony walls must not be placed any further out than six (6') from the street or minimum front yard set back lines. An ACR must be submitted by Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, Sections 4.1,4.27)

6. IRON AND METAL FENCES/GATES: May be installed and attached to the pony walls near the patios /court yards. They must be painted a complimentary color that goes with the color of the home. Iron and metal fences/gates may only be seven (7') feet in height. Excluding RV gates, these gates must have slats installed and they should be treated with a weather stain to ensure that they will with stand the harsh weather in AZ. RV gates and entrance gates must be kept in good appearance and working order. Prior to ordering or installation of iron and metal fences/gates, and ACR must be submitted for prior written approval by the Design Review Committee, (CC&R's Article 4, Section 4.11

7. DRIVEWAYS: Concrete driveways may not exceed more that 50% of the front yard property according to compliance of Mesa City Codes. An ACR must be submitted by the

Homeowner for prior written approval by the Design Review Committee before commencing work. (Mesa City Code)

8. DRIVEWAYS TO THE RV GATE: Vehicle parking is permitted in front of a closed RV gate. Only, if the driveway material consists of either concrete, three (3") inches of crushed gravel, granite or two (2) rows of pavers between the width of 2' to 3' wide or at least the width of the vehicle tires. If the material is gravel, granite or rock, it has to be surrounded by a permanent border according to compliance with Mesa City Codes. Permanent border may consist of curbing, pavers, stones, or concrete, etc. The gravel, granite or rock must be raked frequently for tire tracks. If adding pavers to the RV driveway, an ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee. (Board approved, 2006 Mesa City Code)

9. SIDEWALKS LEADING TO THE FRONT DOOR, GATES OR DRIVEWAYS: May be faux painted with designs such as brick, rock or flagstone in a neutral or earth tone color to blend with the base color of the home. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, sections 4.1, 4.6)

10. EXTERIOR PAINT COLORS FOR HOMES: Homeowner must check with the Design Review Committee for Exterior Color Codes for Salerno Ranch Subdivision before submitting an ACR prior to choosing a color to repaint the exterior color of their home. (Board Approved 2006)

11. EXTERIOR HOUSING MAINTENANCE: The exterior housing maintenance ordinance or "housing code" requires that the homes and other exterior structures be maintained in a structurally sound condition and not show deterioration, disrepair or blight. If paint is required, then an ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before choosing a color to repaint the exterior color of the home. (CC&R's Article 4, section 4.6, Mesa City Code)

12. FRONT SCREEN DOORS: Screen doors must be painted either the color of the door, base or trim color of the home. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before installing the front screen door. (Board Approved 2006)

13. WINDOW SCREEN FRAMES: Window screen frames should be the same color as the window frames. (CC&R's Article 4, section 4.25)

14. RAIN GUTTERS: Must be painted the same color as the eave or base color of the home or roof. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (DRC)

15. DOWN SPOUTS: Must be placed so that the direction for the run off isn't running into the neighbor's property. (DRC)

16. **PERGOLAS:** Will be allowed in the back yard only. They may not be any higher than twelve (12) feet and must be painted the same color of the home, trim or earth tone color. It may be composed of wood, painted metal, fiber glass or PVC material. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, Section 4.1, 4.20, Article 11, Section 11.2)

17. **PLAYGROUND EQUIPMENT AND TRAMPOLINES:** May be installed in the back yard and must be at least ten (10) feet away from the back and side fence lines. Playground equipment can not exceed more than eleven (11) feet in height and must be kept in good condition. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing work. (CC&R's Article 4, Section 4.13)

18. **BASKETBALL HOOPS:** No stationary basketball hoops may be attached to any part of the house in the front or back yards. All portable basketball hoops and backboards must be removed from the front yard and driveways each evening and stored behind a six (6) foot fence. All portable basketball, hoops and backboards need to be kept in good condition. (CC&R's, Article 4, section 4.13)

19. **HOLIDAY LIGHTING AND DECORATIONS:** All holiday lighting and decorations may not be displayed until thirty (30) days prior to the holiday and must be removed by the fifteenth (15th) day for the following month. The outdoor holiday lighting and decorations must be in good condition and working properly as not to become an eyesore or a fire hazard. (DRC)

20. **POLITICAL SIGNS:** Political signs may not be displayed until forty-five (45) days prior to an election and must be removed seven (7) days after an election. There can be no more than two political signs per Lot and no Larger than 2' X 2'. No political signs are allowed in the Common Areas. No self made signs. (CC&R's Article 4, section 4.12 (d), State Statute HB2478 and Board Approved 2006)

21. **GUEST HOUSE, DETACHED GARAGE, TENNIS COURT AND/OR ADD-ON:** Must be approved prior to getting City of Mesa approval. An ACR along with drawings must be submitted by the Homeowner for prior written approval by the Design Review Committee before commencing. (CC&R's Article 4, sections 4.1, 4.8)

22. **STORAGE SHEDS:** Should be no higher than nine (9) feet high. The sheds should be painted to match the exterior of the home or a neutral color. The roof should either be the same texture of the home or something that looks good and will stand the heat temps. No thatched, bamboo or palm leaves are permitted for the shed roof. An ACR must be submitted by the Homeowner for prior written approval by the Design Review Committee before adding the storage shed. (Mesa City Code, CCR's Article 4, sections 4.1, 4.20)

Salerno Ranch Fine Policy

A member of Salerno Ranch Homeowners Association who is found to be in violation of the Declaration of Covenants, Conditions and Restrictions or any other provision of the governing documents of Salerno Ranch will be notified in writing, by Salerno Ranch's managing agent, sent by mail or hand delivered, of the nature of the violation and the applicable fine for noncompliance. First Notice will be a letter describing the violation. A member will be given fourteen (14) calendar days to bring the violation into compliance. Second Notice will be another letter again defining the violation and notifying the member that in the event the property is not brought into compliance within an additional fourteen (14) calendar days, a fine will be assessed to their account. Third and Subsequent Notices: This letter will notify member of the amount of the fine being assessed to their account and provide a timeline for compliance to avoid additional fines. It will also advise that continued violations will result in additional fines and potential legal action.

The member who has received notification of the violation will be given notice of his or her right to be heard by the Board of Directors at the next scheduled regular meeting of the Board of Directors concerning his or her defense, if any, or mitigating circumstances, if any, to the alleged violation. If the Board of Directors hears a member's reasons for the violation, and decides to not impose the monetary penalty, the member will be relieved of any obligation to pay the monetary penalty. If the member does not attend the next regularly scheduled Board of Directors meeting after mailing of the notice of violation, the fine will be deemed imposed the day of the Board of Directors meeting.

The Board of Directors retains the authority to accrue monetary penalties from the date of the violation through the date of the meeting regardless of whether the member attends the meeting to be heard.

Any fine levied pursuant to this resolution and policy shall be considered an assessment against the member's lot and shall be collectible by Salerno Ranch's management agent in the same manner as all other such assessments as provided in the Declaration of Covenants, Conditions and Restrictions for Salerno Ranch, and under Arizona law.

This resolution and policy is not intended by the Board of Directors to preclude any other enforcement remedy that Salerno Ranch may possess at law or inequity with respect to any violation of the governing documents of Salerno Ranch.

All legal, collection and other expenses incurred by Salerno Ranch Homeowners Association or its management agent to obtain compliance of a member with the Declaration or other provisions of the governing documents will be the obligation of the member.
Fine Schedule:

First Assessment \$50.00

Continuing Assessments \$50.00-\$500.00 per occurrence